

Initech Mutual Non-Disclosure Agreement

Definitions

Confidential Information means information disclosed by either party that is marked confidential or that a reasonable person would understand to be confidential. The receiving party shall use Confidential Information only for the Purpose.

Permitted Disclosures

The receiving party may disclose Confidential Information to its employees, contractors, and professional advisors who have a need to know and are bound by confidentiality obligations no less protective than those herein.

Term

This Agreement shall remain in effect for three (3) years from the Effective Date. Confidentiality obligations shall survive termination for an additional five (5) years.

Governing Law

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws principles.